

Amendment No. 1 to HB0522

White
Signature of Sponsor

AMEND Senate Bill No. 386*

House Bill No. 522

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by adding the following as a new section:

(a) This section is known and may be cited as the "Early Behavioral Intervention and Reporting Act."

(b) As used in this section, "early warning signs" means evidence of a student's safety, health, or behavioral issues and includes, but is not limited to, indicators of a student engaging in or being the victim of harassment, intimidation, bullying, or cyber-bullying; making or receiving threats of violence; and exhibiting signs of substance abuse, mental health issues, self-harm, or suicidal ideation.

(c) Each LEA and public charter school shall implement a computer-based system that teachers and school staff must use to input data of early warning signs demonstrated by students enrolled in the LEA or public charter school. Each LEA and public charter school shall ensure that each teacher and school staff member is trained to identify early warning signs and on how to input data into the computer-based system.

(d) The computer-based system implemented pursuant to subsection (c) must:

(1) Align with the requirements in § 49-6-4503; the School Discipline Act, compiled in part 41 of this chapter; and the school safety plans adopted by the LEA or public charter school pursuant to the Schools Against Violence in Education (SAVE) Act, compiled in part 8 of this chapter;

(2) Include a database that is capable of receiving and maintaining student data entered by teachers and school staff on the early warning signs demonstrated by its students; and

(3) Immediately notify the LEA personnel serving on the LEA's threat assessment team created pursuant to § 49-6-2701, or the employee of the public charter school who is designated to receive such notifications, when an early warning sign is entered into the system for a student.

(e) The LEA or public charter school personnel receiving a notification of an early warning sign of a student pursuant to subdivision (d)(3) shall review the notification, and any notifications of the student previously received, and determine whether further action is needed to address the student's behavior.

(f) Each LEA and public charter school shall annually submit a report to the department of education summarizing the data collected in the immediately preceding school year and the interventions provided, if any.

(g) Reports made pursuant to this section must comply with the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g); § 10-7-504; the Data Accessibility, Transparency, and Accountability Act, compiled in chapter 1, part 7 of this title; and all other relevant privacy laws.

(h) If the commissioner of education finds that an LEA or public charter school is not complying with this section, then the commissioner may withhold state funds, in an amount determined by the commissioner, from the LEA or public charter school until the LEA or public charter school is in compliance with this section.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.